

BEFORE THE CENTRAL ELECTRICITY REGULATORY COMMISSION
6TH, 7TH, & 8TH FLOORS, TOWER B, WORLD TRADE CENTRE,
NAUROJI NAGAR NEW DELHI
PETITION No. 310/MP/2026

IN THE MATTER OF:

AMPIN Energy Utility Nine Pvt. Ltd. & Anr.

...Petitioners

Versus

Central Transmission Utility of India Limited

...Respondent

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REPLY ON BEHALF OF RESPONDENT – CENTRAL TRANSMISSION UTILITY OF INDIA LIMITED

MOST RESPECTFULLY SHOWETH:

1. The present Petition has been filed by AMPIN Energy Utility Nine Pvt. Ltd. ("**Petitioner No. 1**") and AMPIN Energy Utility Pvt. Ltd. ("**Petitioner No. 2**"), seeking, *inter alia*, (i) exercise of this Hon'ble Commission's power to relax and remove difficulties under Regulations 41 and 42 of the Central Electricity Regulatory Commission (Connectivity and General Network Access to the inter-State Transmission System) Regulations, 2022 ("**GNA Regulations**"), so as to relax the applicability of Regulation 5.11(b) of the GNA Regulations in determining the connectivity margin available for non-solar hour access at Fatehgarh-IV (Sec-I) Pooling Station ("**Fatehgarh-IV PS**") against the connectivity of 300 MW held by AMPIN Energy Green Private Limited ("**AEGPL**"); (ii) a direction to Central Transmission Utility of India Limited ("**CTUIL**") to revise the said margin from 166 MW to 199.5 MW; and (iii) a consequential grant of non-solar hour access connectivity of 199 MW to Petitioner No. 1 for its proposed Battery Energy Storage System ("**BESS**") at Fatehgarh-IV PS. [**Prayer @ Pages 48-49**]
2. At the outset, CTUIL denies and disputes in toto each and every averment, allegation, contention and inference made by the Petitioners in the captioned

Petition, save and except what is expressly admitted hereinbelow. All submissions made herein are in the alternative and without prejudice to one another. Nothing contained in the Petition shall be deemed to be admitted by CTUIL merely because it has not been specifically dealt with.

3. Before dealing with the grounds, the facts leading to the filing of the present Petition are as under :

(a) The details of the connectives granted to AEGPL are as under -

S. No.	Application No. / Connectivity Quantum	Configuration (Solar / Wind)	Stage-II Grant /Final Grant/ Transition	COD Status
1	Application No. 1200003022 (Hybrid) 130 MW	112.5 MW Solar + 44.1 MW Wind	Stage-II connectivity granted 13.04.2021 [Pages 52 – 57] Deemed GNA granted 25.09.2023 under GNA Regulations. [Pages 58 - 61]	COD declared on 19.02.2026, w.e.f. 21.02.2026 [Page 76]
2	Application No. 0412100019 (Hybrid) 120 MW	110 MW Solar + 39.9 MW Wind	Final grant was issued on 18.01.2024 [Pages 62 -68]	COD declared on 31.03.2026, w.e.f. 04.04.2026 [Page 78]
3	Application No. 0312100007 (Hybrid) 50 MW	50 MW Solar + 16.5 MW Wind	Final grant was issued on 12.09.2024 [Pages 69 - 75]	COD declared on 25.02.2026, w.e.f. 27.02.2026 [Page 77]
Total: 300 MW [272.5 MW Solar + 100.5 MW Wind]				

- (b) With effect from 09.09.2025, the Third Amendment to the GNA Regulations introduced Regulation 5.11 read with Annexure IV, by which existing solar-based Connectivity grantees such as AEGPL became liable

to be converted into entities with "solar hour access". The relevant extracts from the Third Amendment, inter-alia, reads as under - [**Pages 79-168 @ 96-97 and 163-168**]

"5.11. Entities with Solar Hour Access and Non-Solar Hour Access (a) A REGS based on a Wind source (with or without ESS) or ESS may seek Connectivity with non-solar hour access for a quantum of 50 MW and above at a terminal bay of an ISTS substation:

- (i) through a separate dedicated transmission line, or*
- (ii) which is already allocated to another REGS or Renewable Power Park, with solar hour access*

Example: A REGS (with Installed capacity of Wind - 400 MW, ESS - 200 MW) may seek Connectivity of 600 MW with nonsolar hour access, where injection scheduling rights during solar hours shall be Nil and injection scheduling rights during non-solar hours shall be 600 MW. Such REGS shall specify the maximum drawal required from the grid during the day, which may be 200 MW in the instant example. Upon approval by the Nodal Agency, it shall be eligible to draw 200 MW for the day, subject to availability of the transmission system.

(b) An REGS (with or without ESS) or RPPD, based on solar source or an RHGS with a combination of solar source with another source (with or without ESS), where in principle or final grant of Connectivity has been intimated or where GNA is effective, shall be converted as an entity with solar hour access (with injection scheduling rights corresponding to Connectivity quantum for solar hours and corresponding to capacity other than solar source during non-solar hours limited to the quantum of Connectivity) within a period of one week after the expiry of three months, from the date of effectiveness of this Regulation:

Provided that such entity shall have the right of making an application for an additional capacity under Regulation 5.2 or Regulation 5.11(a) of these regulations within a period of three months from the effectiveness of this Regulation and while converting such entity to an entity with solar hour access, the Nodal Agency shall consider such application made for the additional capacity under Regulation 5.2 or Regulation 5.11(a) of these regulations:

Provided further that if the quantum of Connectivity that can be made available for non-solar hours is less than 50 MW, such REGS

or RHGS shall not be considered for conversion as an entity with solar hour access, and such entity shall continue to be an entity with full day access.”

Annexure IV of the GNA Regulation @ Pages 163-168

- (c) On 10.10.2025, CTUIL published the 'Details of margins' in discharge of its obligation under Clause 3 of Annexure IV of the GNA Regulations as follows -

Details of solar and non-solar hour access to entities granted in-principle and final grant of connectivity and margins at various substations as per Annex-IV(3) of GNA Regulations

Substation	Voltage level of Terminal Bay	Application ID	Name of Applicant	Project Type	Solar (MW)	Wind (MW)	ESS (MW)	Connectivity (MW)	Solar Hour Access (MW)	Non-Solar Hour Access (MW)	Margins for Solar Hour (per bay)	Margins for Non-Solar Hour (per bay)	Margins available in the S/s for Solar Hour Access (MW)	Margins available in the S/s for Non-Solar Hour Access (MW)	Space Provision for Future 220 kV bays	Space Provision for Future 400 kV bays
Fatehgarh-IV (Sec-1)	220 kV	2200000003	BN HYBRID POWER-1 PRIVATE LIMITED	Hybrid (RHGS)	40	79.2	0	119.2	119.2	79.2	0	150	0	1507	0	0
		2200000102	BN HYBRID POWER-1 PRIVATE LIMITED	Hybrid (RHGS)	110	70.8	0	180.8	180.8	70.8						
	220 kV	St-II:1200003022 (130 MW) LTA:1200003416 (130 MW)	AMPIN Energy Green Pvt. Ltd.	Solar	112.5	44.1	0	130	130	44.1	0	199.5				
		412100019 (St-II: 0312100005)	AMPIN Energy Green Pvt. Ltd.	Hybrid	110	39.9	0	120	120	39.9						
		312100007	AMPIN Energy Green Pvt. Ltd.	Hybrid	50	16.5	0	50	50	16.5						
	220 kV	St-II:1200003002 (380 MW) LTA:1200003531 (380 MW)	ABC Renewable Energy Private Limited	Solar	380	0	0	380	380	0	0	380				
	220 kV	212100032	Lucoo Solar Pvt. Ltd.	Solar	200	0	0	200	200	0	0	300				
		0312100018 (Enhancement)	Lucoo Solar Pvt. Ltd.	Solar	100	0	0	100	100	0						
	220 kV	412100009 (St-II: 1200003827, 1200003910, 1200003958, 0312100010 & 0312100012)	Juniper Green Stellar Private Limited	Hybrid	50	100	22.5	150	150	122.5	0	97.5				
		St-II: 312100010 (45 MW) (5 out of 45 MW), 312100012 (60 MW) LTA: 0412100011(65 MW)	Juniper Green Stellar Pvt. Ltd.	Solar	65	0	22.5	65	65	22.5						
		412100010 (St-II: 1200003827, 1200003910, 1200003958, 0312100010 & 0312100012)	Juniper Green Stellar Private Limited	Hybrid	50	100	22.5	150	150	122.5						
	220 kV	1200003332	ABC RJ Land 01 Private Limited	Solar	110	0	0	110	110	0	0	380				
		1200003575	ABC RJ Land 01 Private Limited	Solar	270	0	0	270	270	0						

1. Non-solar hour capacity of the substations have been considered same as solar hour access capacity of the corresponding substation.

2. For REGS/RHGS connected through electrical system of conventional plants, only solar and non-solar access has been indicated. No margins are being indicated for such entities. List of such entities is attached at Annexure-I.

3. Additional generation approved under Regulation 5.2 are indicated separately in Annexure-II of the list. Same shall be considered for allotment of solar/non-solar hour access against corresponding connectivity applications subject to fulfillment of requisite conditions/compliances under Regulation 37.10 (a).

4. BESS/Standalone ESS grantees are not considered for solar-hour access as no injection is envisaged from such entities under Solar hours.

5. The margins are indicative in nature and the connectivity for solar/non-solar hour access shall be granted as per the detailed system studies after receipt of the application.

6. All the entities are requested to check the corresponding details as per the in-principle/final grant of connectivity and intimate in case of any discrepancy to CTU within 10 days.

*Applications whose grant is revoked and are presently subjudice

- (d) On 05.12.2025, Petitioner No. 1 submitted Application No. 2200002703 (resubmitted 23.12.2025), seeking non-solar hour access connectivity of 199 MW for its BESS at Fatehgarh-IV PS under Regulation 5.11 (a) of the GNA Regulation against AEGPL's connectivity. **[Pages 396-413]**

- (e) On 10.02.2026, Petitioner No. 1 was issued a Letter of Award by SECI for 199MW contracted capacity of RE Power Project, subsequently amended on 16.03.2026. **[Pages 414 - 423]**

- (f) On 10.04.2026, CTUIL notified the revised Detailed Procedure for Grant of Connectivity & GNA ("**Detailed Procedure**"), Clause 11(i) whereof reiterates that applications under Regulation 5.11(a) are to be considered "*subject to availability of bay and/or margin for such non-solar hour access*", and reiterates that the substation-wise and bay-wise list of available margin "*shall be published on CTUIL website.....*". The relevant extracts from the Detailed Procedure, inter-alia, reads as under – [**Pages 432-558**]

(xi) Agenda for CMETS

Based on the results of planning studies, the Nodal Agency shall circulate an Agenda to the applicants and the constituents of CMETS for deliberation in the Consultation Meeting for Evolution of Transmission Schemes ["CMETS"] (for each electrical Region where Connectivity applications have been received) for grant of Connectivity/GNA. The Agenda shall also be uploaded on the Nodal Agency's website. seven (7) days before the CMETS.

The CMETS Agenda shall indicate the particulars of grant of Connectivity or GNA, as the case may be, including the following:

- (a) Sub-station or pooling station at which Connectivity or GNA is being granted;
- (b) Quantum/Capacity for which Connectivity/GNA is being granted;
- (c) Start date of the Connectivity/GNA;
- (d) Nature of the Bay – i.e. under the scope of applicant or ISTS;
- (e) Details of the Bay sharing (if any) – including details of the "principal entity" and the "sharing entity(ies)";

Provided further that where an entity does not agree to the substation or connectivity proposal identified through interconnection studies and proposed by CTU during the CMETS deliberations, such non agreement shall be duly recorded in the CMETS and considered as deemed withdrawal of application under Regulation 3.7.1, and the corresponding application shall be closed by CTU in terms of the provisions of Regulation 3.7.1.

Provided further that, in accordance with Regulation 6.3, the CMETS Agenda shall clearly state the available power-transfer margin in the ISTS and at the concerned sub-station/pooling station and the list of applications along with the capacity received for grant of Connectivity at such sub- station/pooling station in the corresponding month.

11. Processing of 5.11(a) applications

(i) CTU to publish a list of Margins available for Non-Solar Hours Access

As per Regulation 4.5(a) of GNA Regulations, entities can apply for non-solar access only in the specific substations where the margins for non-solar hour access have been declared by CTUIL in line with Annexure-IV. Such list indicating the substation wise & bay wise details of Non solar hour connectivity quantum available for grant shall be published on CTUIL website and shall be updated on monthly basis.

Accordingly, applications received under 5.11(a)(i) or 5.11(a)(ii) shall be considered for grant of Non-Solar hours access based on the details of specific S/s and/or specific bay mentioned in the application as applicable subject to availability of bay and/or margin for such non-solar hour access.

Any applications received at random locations or on any other substations where margins are not declared by CTUIL may be considered as invalid and such applications shall be closed at the time of processing. Same shall be mentioned in the agenda and minutes of CMETS meetings.

- (g) Thereafter, CTUIL published the Agenda for the 47th Consultation Meeting for Evolving Transmission Schemes – Northern Region ("**CMETS-NR**"). CTUIL undertook a scrutiny of AEGPL's Connectivity position at Fatehgarh-IV PS and updated the margins qua Application No. 0312100007 (50 MW) in terms of Second Proviso to Regulation 5.11(b). Since the balance quantum that could be made available for non-solar hours upon conversion of that specific 50 MW grant was only 33.5 MW which is less than the threshold prescribed by the Second Proviso to Regulation 5.11(b), therefore, AEGPL was to continue as an entity with full day access qua the entirety of that 50 MW grant. No part of that 50 MW Connectivity could, therefore, be treated as margin available for grant to a third-party applicant under Regulation 5.11(a). Accordingly, CTUIL in the Agenda for the 47th CMETS-NR dated 14.05.2026, stated that the margin available for non-solar hour access at Fatehgarh-IV PS was 166 MW (85.9 MW + 80.1 MW + Nil). The relevant extracts from the Agenda for the 47th CMETS-NR, inter-alia, reads as under - **[Pages 559 – 682 @ 617-619]**

10. Fathegarh-IV PS(Sec-I)

The details of existing connectivity granted at Fathegarh-IV PS(Sec-I) is as below:

S. No.	Details of Existing Connectivity Grantee	Voltage level & Bay No.	Installed Capacity			Present Injection Rights		Application for Additional capacity under 5.2 (RoFR)	Additional Capacity Under 5.2			Revised Injection Rights considering additional capacity under 5.2(RoFR)		Remaining margin for grant of Non-Solar Hour access under RoFR (MW)
			Solar (MW)	Wind (MW)	ESS (MW-MWh)	Solar Hours (MW)	Non-Solar Hours (MW)		Solar (MW)	Wind (MW)	ESS (MW-MWh)	Solar Hours (MW)	Non-Solar Hours (MW)	
7	AMPIN Energy Green Pvt. Ltd. (St-II :1200003022-130 MW LTA: 1200003416-130 MW)	220 kV Bay No.: 212	112.5	44.1		130	44.1	-	-	-	-	130	44.1	166
8	AMPIN Energy Green Pvt. Ltd. (St-II : 0312100005-120 MW LTA: 0412100019-120 MW)		110	39.9		120	39.9	-	-	-	-	120	39.9	

S. No.	Details of Existing Connectivity Grantee	Voltage level & Bay No.	Installed Capacity			Present Injection Rights		Application for Additional capacity under 5.2 (RoFR)	Additional Capacity Under 5.2			Revised Injection Rights considering additional capacity under 5.2(RoFR)		Remaining margin for grant of Non-Solar Hour access under RoFR (MW)
			Solar (MW)	Wind (MW)	ESS (MW-MWh)	Solar Hours (MW)	Non-Solar Hours (MW)		Solar (MW)	Wind (MW)	ESS (MW-MWh)	Solar Hours (MW)	Non-Solar Hours (MW)	
9	AMPIN Energy Green Pvt. Ltd. (0312100007 -50 MW)		50	16.5		50	50*	-	-	-	-	50	50*	
10	Luceo Solar Pvt. Ltd. (0212100032-200 MW)	220 kV Bay No.: 214	200	0	0	200	0	2200002316 (05-08-2025)			150	200	150	150
11	Luceo Solar Pvt. Ltd. (0312100018 -100 MW)		100	0	0	100	0					100	0	
12	BN Hybrid Power-1 Pvt. Ltd. (2200000003-119.2 MW)	220 kV Bay No.: 216	40	79.2	0	119.2	119.2*	-	-	-	-	119.2	119.2*	72
13	BN Hybrid Power-1 Pvt. Ltd. (2200000102-180.8 MW)		110	70.8	0	180.8	70.8	2200003348 (21-02-2026)	0	3	35	180.8	108.8	
	Total		1647.5	450.5	67.5 (135 MWh)	2025	699					2025	1257	768

* Remaining margin less than 50 MW. Granted full day injection rights in line with 5.11(b)

(h) On 15.05.2026, Petitioner No. 1 issued a letter to CTUIL stating that in the margins available for non-solar access published by CTUIL on 10.10.2025, was provided as 199MW however, in the Agenda for the 47th CMETS, the updated margin of only 166MW at Fategarh IV PS has been mentioned. In light of the same, the Petitioner had applied to CTUIL seeking connectivity of 199MW and had only been issued an LOA by SECI for the same. [**Pages 683 – 685**]

(i) On 12.06.2026, the present Petition was filed before this Hon'ble Commission.

(j) On 20.07.2026, CTUIL published the minutes of meeting of the 47th CMETS held on 20.05.2026 and 24.05.2026 wherein it was categorically provided that the remaining margin for grant of non-solar hour to AEGPL is 166MW. The relevant extracts from the 47th CMETS, inter-alia, reads as under -

S. No.	Details of Existing Connectivity Grantee	Voltage level & Bay No.	Installed Capacity (MW)			Present Injection Rights (MW)		Application for Additional capacity under 5.2 (RoFR)	Additional Capacity Under 5.2 (MW)			Revised Injection Rights considering additional capacity under 5.2(RoFR) (MW)		Remaining margin for grant of Non-Solar Hour access under RoFR (MW)
			Solar	Wind	ESS	Solar Hours	Non-Solar Hours		Solar	Wind	ESS	Solar Hours	Non-Solar Hours	
3	ABC RJ Land 01 Pvt Ltd App. No. 1200003575-270 MW)	Bay No. 205	270	0	0	270	0	2200003184 (16-02-2026)			270	270	270	
4	Juniper Green Steller Pvt. Ltd. St-II-1200003827-100 MW, 1200003910-50 out of 100 MW LTA: 0412100009 150 MW	220 kV Bay No. 207	50	100	22.5	150	150*	2200001677 (21-01-2025)	50	50	27.5	150	150	0
								2200002127 (05-06-2025)	0	0	11.25			
5	Juniper Green Steller Pvt. Ltd St-II- 1200003910-50 MW, 1200003958- 60MW, 0312100010- 40MW LTA: 0412100010-150 MW		70	80	22.5	150	150*	2200001678 (21-01-2025)	50	20	27.5	150	150	
								2200002125 (05-06-2025)	0	0	28.75			
6	Juniper Green Steller Pvt. Ltd St-II-0312100010- 5 MW 0312100012 - 60 MW LTA: 0412100011-150 MW		65	0	22.5	65	65*	2200002126 (05-06-2025)			17.5	65	65*	
7	AMPIN Energy Green Pvt. Ltd. (St-II :1200003022-130 MW LTA: 1200003416-130 MW)	220 kV Bay No. 212	112.5	44.1		130	44.1	-	-	-	-	130	44.1	166
8	AMPIN Energy Green Pvt. Ltd. (St-II : 0312100005-120 MW LTA: 0412100019-120 MW)		110	39.9		120	39.9	-	-	-	-	120	39.9	
9	AMPIN Energy Green Pvt. Ltd. (0312100007 -50 MW)		50	16.5		50	50*	-	-	-	-	50	50*	
10	Luceo Solar Pvt. Ltd. (0212100032-200 MW)	220 kV Bay No. 214	200	0	0	200	0	2200002316 (05-08-2025)			150	200	150	150
11	Luceo Solar Pvt. Ltd. (0312100018 -100 MW)		100	0	0	100	0					100	0	
12	BN Hybrid Power-1 Pvt. Ltd. (2200000003-119.2 MW)	220 kV Bay No. 216	41.2	78	0	119.2	119.2*	-	-	-	-	119.2	119.2*	72
13	BN Hybrid Power-1 Pvt. Ltd. (2200000102-180.8 MW)		110	70.8	0	180.8	70.8	2200003348 (21-02-2026)	0	3	35	180.8	108.8	
	Total		1647.5	450.5	67.5	2025	689					2025	1257	768

* Remaining margin less than 50 MW. Granted full day injection rights in line with 5.11(b)

No Application (eligible for eligible RoFR) under 5.11(a) is received at Fatehgarh-IV PS (Sec-I)

A copy of the relevant extracts from the 47th CMETS minutes of meeting dated 20.07.2026 is attached hereto and marked as **Annexure 'A'**.

PRELIMINARY OBJECTION AS TO MAINTAINABILITY

THE PETITION IS PREMATURE: PETITIONER NO. 1, BEING MERELY AN APPLICANT WITH NO ACCRUED RIGHT, CANNOT SEEK AN ENTITLEMENT DEHORS THE PROCESSING OF ITS APPLICATION

- It is submitted that Petitioner No. 1, in its capacity as an applicant, is not entitled to challenge the determination of margins. The Petitioner, just by making an application does not acquire, any substantial or vested right of a nature to challenge determination of margins done strictly in accordance with the GNA regulations. It is submitted that the petition should be dismissed on account of lack of maintainability.
- Petitioner No. 1 under Regulation 5.11 (a) of the GNA Regulations does not, upon mere submission of an application, or the details of margins available disclosed under Clause 3 of Annexure IV of the GNA Regulations, 2022 acquire

any vested right to a particular quantum of non-solar hour access. The scheme of the GNA Regulations provides for an entire process to followed which includes making application, scrutiny for compliance including availability of bay and margin, issuance of in-principle grant, Conn-BGs furnished thereto and only thereafter, the final grant and the Connectivity Agreement is entered into.

6. The present Petition is not for the removal of any genuine difficulty in implementing Regulation 5.11(a) in respect of Petitioner No. 1's pending Application. Rather, it seeks a declaration, at the application stage itself, that the available margin at Fatehgarh-IV PS is **199.5 MW**.
7. It is submitted that the present Petition is, for these reasons, premature and not maintainable, and is liable to be dismissed on this ground alone.

SUBMISSIONS ON MERITS, WITHOUT PREJUDICE TO THE PRELIMINARY OBJECTION

THE DETAILS OF MARGINS DATED 10.10.2025 WAS PROVISIONAL AND DID NOT PROVIDE ANY VESTED RIGHT

8. Clause 3 of Annexure IV of the GNA Regulations requires CTUIL, inter alia, to publish "*Substation wise and bay-wise details of non-solar hours Connectivity quantum available for the grant under Regulation 5.11(a)*", and requires CTUIL to "*update the same on a monthly basis*".
9. It is submitted that the plain text of Clause 3 makes clear that any figure published thereunder is dynamic in nature, liable to revision as per CTUIL's scrutiny of Connectivity positions across the ISTS network progresses, and is not a final or conclusive allocation in favour of any applicant. An applicant who chooses, at its own commercial risk, to undertake commercial commitments such as participation in a competitive bid by SECI, only on the basis of details

of the margins, does so with full constructive knowledge that the figure is expressly subject to revision.

- 10.** It is further that the details of margins dated 10.10.2025 published by CTUIL itself records that at **Page 392** as follows –

"5.The margins are indicative in nature and the connectivity for solar/non-solar hour access shall be granted as per the detailed system studies after receipt of the application.

6. All the entities are requested to check the corresponding details as per the in-principle/final grant of connectivity and intimate in case of any discrepancy to CTU within 10 days. "

- 11.** It is submitted that Clauses 5 and 6, extracted above, make the following explicitly clear –

- a) That the margins reflected in the publication are "indicative in nature" and not final;
- b) That actual grant of connectivity for solar/non-solar hour access is, in every case, subject to "detailed system studies" to be carried out "after receipt of the application", and not upon the bare figure appearing in list published by CTUIL; and
- c) That entities are themselves called upon to verify the published figures against their own in-principle/final grant particulars and to intimate any discrepancy to CTUIL within 10 days of publication.

- 12.** It is submitted that no vested right, can be founded upon a document that, on its own face, describes its contents as indicative, and provides for grant on a subsequent and independent process of detailed system studies undertaken only upon receipt of an application. It is further submitted that the obligation under Clause 6 to verify particulars and flag discrepancies within 10 days was available to Petitioner No. 1 and to AEGPL, being the entity whose in-principle and final grant particulars were required to be checked. Neither raised any

query or discrepancy within the stipulated window following publication on 10.10.2025.

THE SECOND PROVISO TO REGULATION 5.11(b) IS MANDATORY, WHICH WOULD MAKE AVAILABLE MARGIN OF ONLY 166 MW, AND NOT 199.5 MW, AT FATEHGARH-IV PS

13. Regulation 5.11(b) of the GNA Regulations, inter-alia, reads as under –

“5.11. Entities with Solar Hour Access and Non-Solar Hour Access

....

(b) A REGS (with or without ESS) or RPPD, based on solar source or an RHGS with a combination of solar source with another source (with or without ESS), where in principle or final grant of Connectivity has been intimated or where GNA is effective, shall be converted as an entity with solar hour access (with injection scheduling rights corresponding to Connectivity, quantum for solar hours and corresponding to capacity other than solar source during non-solar hours limited to the quantum of Connectivity) within a period of one week after the expiry of three months, from the date of effectiveness of this Regulation:

Provided that such entity shall have the right of making an application for an additional capacity under Regulation 5.2 or Regulation 5.11(a) of these regulations within a period of three months from the effectiveness of this Regulation and while converting such entity to an entity with solar hour access, the Nodal Agency shall consider such application made for the additional capacity under Regulation 5.2 or Regulation 5.11(a) of these regulations:

Provided further that if the quantum of Connectivity that can be made available for non-solar hours is less than 50 MW, such REGS or RHGS shall not be considered for conversion as an entity with solar hour access and such entity shall continue to be an entity with full day access.

(Emphasis Supplied)

14. In terms of above regulation and on examination of AEGPL's application, position at Fatehgarh-IV PS is as under:

- (k) Application No. 1200003416 (130 MW): existing non-solar (wind) component is 44.1 MW, balance available for non-solar hour access upon conversion is 85.9MW, which exceeds the 50 MW threshold conversion, and therefore 85.9MW is available for non-solar hour access;
- (l) Application No. 0412100019 (120 MW): existing non-solar (wind) component is 39.9 MW, balance available is 80.1 MW, again exceeds the threshold of 50MW, and therefore, 80.1 MW balance is available for non-solar hour access; and
- (m) Application No. 0312100007 (50 MW): existing non-solar (wind) component is 16.5 MW; balance that would be freed up is only 33.5 MW, which is less than the 50 MW threshold prescribed by the Second Proviso and therefore, AEGPL continues as an entity with full day access over the entirety of this 50 MW grant, and NIL quantum is available for non-solar hour access.

15. In terms of the above, the total quantum available for non-solar hour access in terms of Regulation 5.11(b) at Petitioner's bay at Fatehgarh-IV PS is, therefore, 85.9 MW + 80.1 MW + Nil = 166 MW, exactly as the Agenda for the 47th CMETS-NR dated 14.05.2026 and the minutes of 47th CMETS dated 20.07.2026 provides. The Details of margins dated 10.10.2025, insofar as it had reflected 33.5 MW as available from Application No. 0312100007 was inadvertently mentioned without considering the Second Proviso and the correction to 166 MW is not a reduction in any right of Petitioner No. 1, but was mandatory in terms of the GNA Regulations. CTUIL is bound to strictly implement the GNA regulations.

16. Further, it is submitted that the Petitioner is also well aware of the Regulations. Accordingly, the Petitioner very well know the connectivity of less than 50MW as per threshold prescribed by the Second Proviso and therefore, AEGPL continues as an entity with full day access over the entirety of this 50 MW grant, and NIL quantum is available for non-solar hour access.

THE DOCTRINE OF LEGITIMATE EXPECTATION CANNOT BE INVOKED TO COMPEL CTUIL TO ACT ON A COMPUTATION CONTRARY TO THE EXPRESS PROVISIONS OF REGULATION 5.11(b)

17. The Petitioners, at Paragraphs 47 to 53 of the Petition, have relied on the judgment of the Hon'ble Supreme Court in *Food Corporation of India v. Kamdhenu Cattle Feed Industries*, (1993) 1 SCC 71, to contend that a legitimate expectation arises out of CTUIL's conduct in publishing the Details of margins dated 10.10.2025. It is respectfully submitted that by way of the said judgment, the Hon'ble Supreme Court recognised that a legitimate expectation is "a relevant factor requiring due consideration in a fair decision-making process", and that whether an expectation is "reasonable or legitimate" falls to be determined "in larger public interest", wherein "other more important considerations may outweigh what would otherwise have been the legitimate expectation of the claimant".
18. It is submitted that no expectation, can be "legitimate" in law where the representation said to have given rise to it was itself erroneous and contrary to the express and mandatory terms of the GNA Regulation, namely, the Second Proviso to Regulation 5.11(b). It is a well-settled principle that there can be no estoppel, and correspondingly no legitimate expectation, against the express provisions of a statute or a statutory regulation having the force of law.
19. It is further submitted that the very Regulation which the Petitioners invoke to seeking non-solar access under Regulation 5.11(b) and its Second Proviso, is the same Regulation whose correct application defeats the Petitioners very claim. The Petitioners cannot, rely upon Regulation 5.11(b) for AEGPL's conversion (and hence the availability of non-solar access to the Petitioner No. 1) while resisting the application of the very proviso that restricts the conversion of solar connectivity of less than 50MW.

THE HARDSHIP PLEADED IS SELF-CREATED, ARISING OUT OF PETITIONER NO. 1'S OWN COMMERCIAL DECISION TO PARTICIPATE IN COMPETITIVE BIDDING PROCESS ON A PROVISIONAL INDICATIVE DATA

- 20.** Petitioner No. 1, on its own accord, chose to participate in the Bid initiated by SECI and to accept the Letter of Award dated 10.02.2026, allegedly on the basis of the provisional details of margins, without awaiting final grant of its own Application No. 2200002703, and without any confirmation from CTUIL that the figure of 199.5 MW was final. The Petitioner No. 1 having full knowledge of the fact that the said details were only indicative in nature, went ahead with the bidding. Any commercial risk flowing from that choice, made well before Petitioner No. 1's own Application had even been processed to grant is a risk of Petitioner No. 1's own making, and cannot be treated as a "hardship" arising from the operation of Regulation 5.11(b) within the meaning of Regulation 42.

ON THE INTERIM RELIEF SOUGHT

- 21.** It is submitted that, in light of above, the interim reliefs sought at Paragraph 74 of the Petition including the prayer for an ex-parte ad-interim direction restraining CTUIL from allocating or creating third-party rights over the non-solar hour access capacity at Bay No. 212 of Fatehgarh-IV PS, and from rejecting or closing Petitioner No. 1's Application cannot be sustained as the same would be contrary to the specific provisions under the GNA regulations.
- 22.** Without prejudice to the submissions made hereinabove on maintainability and on merits, it is respectfully submitted that CTUIL, being a statutory Nodal Agency, shall abide by such directions as this Hon'ble Commission may deem fit to pass in the present proceedings, including in respect of the interim relief sought.
- 23.** It is specifically denied that CTUIL's revision of the margin available for non-solar hour access at Fatehgarh-IV PS from 199.5 MW to 166 MW was an

arbitrary action, as alleged at Paragraphs 8, 31, 36 and 43 of the Petition. It is submitted that the said revision was a bona fide and mandatory correction, undertaken upon CTUIL in the Agenda for the 47th CMETS-NR, that the Details of margins dated 10.10.2025 had inadvertently reflected 33.5 MW under Application No. 0312100007 as available for grant. It is denied that any right of Petitioner No. 1 has thereby been taken away or arbitrarily affected, Petitioner No. 1 being, at all material times, merely an applicant whose Application remains under processing, and having no vested right to any particular quantum of margin. CTUIL is not filing a para-wise response to the Petition, however, CTUIL craves leave of this Hon'ble Commission to file a para-wise reply, if so required, however any averments made contrary to the above submissions, is denied.

- 24.** In view of the above, it is submitted that the present Petition, along with IA No. 107/2026, is not maintainable, is devoid of merit, and is liable to be dismissed.



COUNSEL FOR RESPONDENT –

CENTRAL TRANSMISSION UTILITY OF INDIA LIMITED

PLACE: Gurugram

DATE: 25.08.2026

BEFORE THE CENTRAL ELECTRICITY REGULATORY COMMISSION

6th, 7th & 8th FLOORS, TOWER B, WORLD TRADE CENTRE,

NAUROJI NAGAR, NEW DELHI

PETITION NO. 310/MP/2026

IN THE MATTER OF:

AMPIN Energy Utility Nine Pvt. Ltd. & Anr.

...Petitioners

Versus

Central Transmission Utility of India Limited

...Respondent

AFFIDAVIT

I, Kamal Kumar Jain, s/o Late Shri Bhag Chand Jain, aged about 52 years, working as Senior General Manager in the Central Transmission Utility of India Ltd. ("CTUIL"/ "CTU"), having its registered Office at Plot No. 2, Sector- 29, Gurugram Haryana-122001 and present Office at Floors No. 5-10, Tower 1, Plot No. 16, IRCON International Tower, Institutional Area, Sector 32, Gurugram, Haryana - 122003, do hereby solemnly affirm and state as under:

1. I say that I am the duly Authorized Signatory of Central Transmission Utility of India Limited, the Respondent herein, and am competent to swear this Affidavit.
2. I say that I have read and understood the contents of the accompanying Reply filed by the Respondent in response to the Petition filed by the Petitioners, AMPIN Energy Utility Nine Pvt. Ltd. & Anr.
3. I say that the contents of the accompanying Reply are based on the records of the Respondent maintained in the ordinary course of business and are believed by me to be true and correct.

KAMAL KUMAR JAIN
Senior General Manager
सेंट्रल ट्रांसमिशन यूटिलिटी ऑफ इंडिया लिमिटेड
CENTRAL TRANSMISSION UTILITY OF INDIA LIMITED
(पावर ग्रिड कॉर्पोरेशन ऑफ इंडिया लिमिटेड की पूर्ण स्वामित्व कंपनी)
(A wholly owned subsidiary of POWERGRID)
5th-10th Floor, Ircon International Tower-1, Plot No.-16, Sector-32, Gurugram-122003

DEPONENT

VERIFICATION

I, the Deponent abovenamed, do hereby verify that the contents of the above Affidavit are true and correct to the best of my knowledge and belief, that no part of it is false, and that nothing material has been concealed therefrom.

Verified at New Delhi on this 24th day of August 2026.



ATTESTED

RAM NIWAS MALIK, ADVOCATE
NOTARY, GURUGRAM (HR.), INDIA

DEPONENT

KAMAL KUMAR JAIN
Senior General Manager
सेंट्रल ट्रांसमिशन यूटिलिटी ऑफ इंडिया लिमिटेड
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(A wholly owned subsidiary of POWERGRID)
5th-10th Floor, Ircon International Tower-1, Plot No.-16, Sector-32, Gurugram-122003

**Ref: CTU/N/00/CMETS_NR/47****Date: 20-07-2026****As per distribution list****Subject: 47th Consultation Meeting for Evolving Transmission Schemes in Northern Region-Minutes of Meeting**

Dear Sir/Ma'am,

Please find enclosed the minutes of the 47th Consultation Meeting for Evolving Transmission Schemes in Northern Region 1st sitting held on 20th May 2026 (Wednesday) & 2nd sitting held on 24.06.2026 (Wednesday) through virtual mode.

The minutes are also available at CTU website (www.ctuil.in)

Thanking you,

Yours faithfully,

(Anil Kr Meena)**Sr. General Manager**

Minutes of 47th CMETS in NR held on 20.05.2026 (1st Sitting) & 24.06.2026 (2nd Sitting)

S. No.	Application No. & Date	Applicant	Connectivity Quantum (MW)	Installed Capacity (MW)	SCoD of Installed capacity	Maximum Injection Requested (MW)	Maximum Drawl Requested (MW)	REGS for Charging of ESS (MW)	Non-Solar Hours Injection Rights (MW)	Start date of connectivity		Type of Non-Solar Hour Access	Details of Existing entity (In-principle/final Connectivity grantee)	Decision in the meeting
										Requested	Agreed			
13	2200003119 (03-02-2026)	Serentica Renewables India Pvt. Ltd	150	150 (Wind)	30-06-2028	150	150	NIL	150	30-06-2028	30-06-2028	Through sharing of terminal bay	Serentica Renewables India Pvt Ltd (0212100034 -300 MW)	Agreed for further processing
14	2200003120 (03-02-2026)	Serentica Renewables India Pvt. Ltd	150	150 (Wind)	30-06-2028	150	150	NIL	150	30-06-2028	30-06-2028	Through sharing of terminal bay	Serentica Renewables India Pvt. Ltd. (0212100034 -300 MW)	Agreed for further processing
15	2200003380 (21-02-2026)	Sprng Power Pvt. Ltd	300	300 MW 1200 MWh (BESS)	30-06-2029 (Ref Note-1)	300	300	NIL	300	30-06-2029 (Ref Note-1)	30-06-2029 (Ref Note-1)	Through sharing of terminal bay	Sprng Power Pvt Ltd (2200000024- 300 MW)	Agreed for further processing

Note-1: In case requested SCoD/Start date is beyond 24 months from the date of issuance of in-principle grant intimation, the SCoD/Start date will be aligned with 24 months from date of in-principle intimation or firm start date of connectivity as applicable.

Considering the margin available at the respective bay and Fatehgarh-III PS (Sec-II) for grant of Non-Solar Hour access, it was agreed to grant connectivity with Non-Solar Hour Access to above applications (S No. 1 & 15) under 5.11(a).

It was informed that the transmission system for connectivity for grant of Non-Solar hour access under RoFR shall be the same as the transmission system for existing connectivity granted under 4.1 which is being converted into connectivity with Solar Hour access in line with Reg. 5.11(b).

It was also informed that, upon issuance of intimation, the applicant under 5.11(a) need to submit separate Conn BG-1 of Rs. 50 lakh for each application under 5.11(a). Further, applicant under 5.11(a) need to submit Conn BG-2 & Conn BG-3 on prorata basis of Conn BG-2 & Conn BG-3 submitted by Original Connectivity grantee. Upon submission of applicable Conn BGs and subsequent signing of Connectivity agreement by applicant under 5.11(a), the corresponding amount of Conn BG-2 & Conn BG-3 submitted by original Connectivity grantee shall be released. Details of pro rate sharing of Conn BGs is enclosed in **Annexure-I**.

10. Fathegarh-IV PS(Sec-I)

The details of existing connectivity granted at Fathegarh-IV PS(Sec-I) is as below:

S. No.	Details of Existing Connectivity Grantee	Voltage level & Bay No.	Installed Capacity (MW)			Present Injection Rights (MW)		Application for Additional capacity under 5.2 (RoFR)	Additional Capacity Under 5.2 (MW)			Revised Injection Rights considering additional capacity under 5.2(RoFR) (MW)		Remaining margin for grant of Non-Solar Hour access under RoFR (MW)
			Solar	Wind	ESS	Solar Hours	Non-Solar Hours		Solar	Wind	ESS	Solar Hours	Non-Solar Hours	
1	ABC Renewable Energy Pvt. Ltd. (St-II :1200003002 LTA: 1200003531) Connectivity Revoked and matter subjudice	220 kV Bay No. 203	380	0	0	380	0	-	-	-	-	-	-	380
2	ABC RJ Land 01 Pvt Ltd (App. No. 1200003332-110 MW)	220 kV	110	0	0	110	0	2200003169 (15-02-2026)			110	110	110	0

Minutes of 47th CMETS in NR held on 20.05.2026 (1st Sitting) & 24.06.2026 (2nd Sitting)

S. No.	Details of Existing Connectivity Grantee	Voltage level & Bay No.	Installed Capacity (MW)			Present Injection Rights (MW)		Application for Additional capacity under 5.2 (RoFR)	Additional Capacity Under 5.2 (MW)			Revised Injection Rights considering additional capacity under 5.2(RoFR) (MW)		Remaining margin for grant of Non-Solar Hour access under RoFR (MW)
			Solar	Wind	ESS	Solar Hours	Non-Solar Hours		Solar	Wind	ESS	Solar Hours	Non-Solar Hours	
3	ABC RJ Land 01 Pvt Ltd App. No. 1200003575-270 MW)	Bay No. 205	270	0	0	270	0	2200003184 (16-02-2026)			270	270	270	
4	Juniper Green Steller Pvt. Ltd. St-II-1200003827-100 MW, 1200003910-50 out of 100 MW LTA: 0412100009 150 MW	220 kV Bay No. 207	50	100	22.5	150	150*	2200001677 (21-01-2025)	50	50	27.5	150	150	0
5	Juniper Green Steller Pvt. Ltd St-II- 1200003910-50 MW, 1200003958- 60MW, 0312100010- 40MW LTA: 0412100010-150 MW		70	80	22.5	150	150*	2200002127 (05-06-2025)	0	0	11.25	150	150	
6	Juniper Green Steller Pvt. Ltd St-II-0312100010- 5 MW 0312100012 - 60 MW LTA: 0412100011-150 MW		65	0	22.5	65	65*	2200002125 (05-06-2025)	0	0	28.75	150	150	
7	AMPIN Energy Green Pvt. Ltd. (St-II :1200003022-130 MW LTA: 1200003416-130 MW)	220 kV Bay No. 212	112.5	44.1		130	44.1	-	-	-	-	130	44.1	166
8	AMPIN Energy Green Pvt. Ltd. (St-II : 0312100005-120 MW LTA: 0412100019-120 MW)		110	39.9		120	39.9	-	-	-	-	120	39.9	
9	AMPIN Energy Green Pvt. Ltd. (0312100007 -50 MW)		50	16.5		50	50*	-	-	-	-	50	50*	
10	Luceo Solar Pvt. Ltd. (0212100032-200 MW)	220 kV Bay No. 214	200	0	0	200	0	2200002316 (05-08-2025)			150	200	150	150
11	Luceo Solar Pvt. Ltd. (0312100018 -100 MW)		100	0	0	100	0					100	0	
12	BN Hybrid Power-1 Pvt. Ltd. (2200000003-119.2 MW)	220 kV Bay No. 216	41.2	78	0	119.2	119.2*	-	-	-	-	119.2	119.2*	72
13	BN Hybrid Power-1 Pvt. Ltd. (2200000102-180.8 MW)		110	70.8	0	180.8	70.8	2200003348 (21-02-2026)	0	3	35	180.8	108.8	
Total			1647.5	450.5	67.5	2025	689					2025	1257	768

* Remaining margin less than 50 MW. Granted full day injection rights in line with 5.11(b)

No Application (eligible for eligible RoFR) under 5.11(a) is received at Fatehgarh-IV PS (Sec-I)

11. Fathegarh-IV PS(Sec-II)

The details of existing connectivity granted at Fathegarh-IV PS(Sec-II) is as below: